

ETHNIC IDENTITY AND SELF-DETERMINATION

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Traditionally ethnic identity has been defined in terms of race and descent. In some societies race has remained the most significant factor but in many, with the progressive discrediting of race theories, the emphasis shifted to cultural features. Because the various cultural features may not be correlated, the focus frequently, but not always, settled on language. In a few, the critical feature was religion, history, territory, or citizenship.

Even the non-racial definitions such as language pose problems. For example, many middle-class Sri Lankans and a large proportion of Sri Lankan expatriates speak English, even in their homes; in effect, their mother tongue is English. But does this redefine their ethnicity? Similarly, most Sri Lankan Muslims speak Tamil at home and their children have their schooling in the Tamil medium, but increasing proportions of Muslims speak Sinhala or English at home and their children have their schooling in the Sinhala or English medium. But does this redefine their ethnicity?

All of us have multiple identities, which is healthy. Group identities are as necessary as individual identities; so is pluralism. Without distinctive group and individual features, life would be unbearably bland. On the other hand, few would wish to belong to a society in which there is total correlation of all features of group identity — the ultimate end product of ethnic cleansing.

Identity and Community

The most pragmatic basis of ethnic identity may be a sense of community. Do all Sri Lankans have the same ethnic identity? Are those categorized as Kandyan Sinhalese and Low-Country Sinhalese of the same or different ethnic identity? Are those categorized as Sri Lankan Tamils, Malayaha Tamils and Muslims of the same or different ethnic identity? Since we all have multiple identities, there can be no definitive answers to these questions. Perhaps it is just as well. But this is not to deny that some identities are felt to be more important than others and, in particular, politically more potent.

Our civil war relates to perceptions of ethnic identity and loyalties, and felt grievances linked to these perceptions. Conflicts cannot be overcome by mere definition or redefinition of ethnicity; nor can ethnic identities be foisted on any community or individual. We all need to decide for ourselves what our ethnic identities are, and which of these is most salient in any particular context. In national politics one identity may surface as the most salient, in local politics another, in literary matters a third, in religious life a fourth, and so on. Moreover, the weights we attach to these identities may change over time.

For example, up to the mid-20th century, the Kandyan Sinhalese sought recognition as a distinctive ethnic community, with special political and administrative structure to secure and sustain their welfare. This was accepted and special provisions were made for the socio-economic development of the Kandyan areas and the Kandyan Sinhalese population. In addition, all revenue divisions were categorized into Kandyan Sinhalese, Low-Country Sinhalese and Tamil, with separate cadres of Divisional Revenue Officers serving these areas. Recruitment to each of these three service cadres was exclusively from the community concerned. Perhaps Kandyan Sinhalese no longer claim a distinctive ethnic identity requiring separate political and administrative structures. It is for them to decide on this matter and not for others to dictate to them. On the other hand, it is possible that Muslims and Malayaha Tamils, earlier subsumed within the Tamil category in respect of the D.R.O. service, may now wish to be recognized as distinctive ethnic communities. Again, it is for them to decide and not for others to dictate to them. If there are conflicting perceptions, the leadership of the communities concerned could seek to resolve them amicably. This may be particularly important in respect of political and administrative institutions. On this issue, as on many others, there are perceived ethnicity correlated differences but also, happily, attempts to resolve them through dialogue. This is of the essence of self-determination.

Self-determination may take many forms including:

- i) External self-determination (secession).
- ii) Internal self-determination extending to autonomy for groups defined territorially, but with boundaries drawn with due consideration paid to ethnic identity.
- iii) Internal self-determination reflected in special rights for minority groups within a larger politically entity, as recognized in Article 27 of the International Covenant on Civil and Political Rights, and in the U.N. General Assembly's 1992 Declaration on the Rights of Persons Belonging to National or Ethnic, Religious and Linguistic Minorities.

The original LTTE demand was for (i) above; it now appears that it will settle for (ii) (which was the ITAK/TULF demand through the third quarter of the 20th century), falling back on (i) only in the event of a total breakdown in negotiations. The long-standing LTTE commitment to the first option seems to be receding. The SLMC position has not been finally formulated but, clearly, it will be based on the understanding that the Muslims have a distinct ethnic identity; the alternatives appear to be (ii) or (iii) above depending on whether the arrangements worked out between the government and the LTTE adequately meet Muslim concerns. For the Muslims, (ii) could be in the form of a self-governing Muslim majority South

East region; (iii) could be in the form of constitutional safeguards and institutional arrangements protecting the rights and promoting the welfare of Muslims but without the establishment of a self-governing South East region. For the Malayalam Tamils, (i) and (ii) may not be feasible, and their focus is on (iii).

Not every federalism/regional autonomy regime is based on internal self-determination. For example, a regime of regional autonomy based on river basins (as has been proposed) will not meet the objectives of internal self-determination. Perhaps that proposal is designed precisely to frustrate such objectives. Subject to the need for territorial contiguity, a degree of correlation with the ethnic identity of the population resident in it is an essential ingredient. On the other hand a federation of exclusively, mono-ethnic regions will not be viable in a multi-ethnic country. Such a situation will surely provoke ethnicity-based conflict and, inevitably, the center will seek to re-impose its hegemony over the regions exclusively peopled by minority population. A healthy and enduring relationship between the center and the periphery requires, at all levels, both power sharing and openness to pluralism.

Indian Case

A look at India will be instructive. Firstly, even after more than half a century, the ill effects of separation (partition) continue to foul politics and ethnic harmony, and to generate violence in both India and Pakistan. Second, through adopting a federal (or quasi-federal) constitution, India went some distance towards meeting the aspirations of internal self-determination. But due recognition was not given to linguistic identity, and there were eruptions of linguistic nationalism in many regions, with demands for the redrawing of state boundaries and, in some cases, secession.

The Indian leadership initially opposed it, but was eventually compelled to concede the principle of linguistic reorganization of states, i.e. internal self-determination on the basis of linguistic identity. Contrary to the fears of the Indian leadership, the reforms proved to be unifying and integrative in respect of all-India nationalism. Centre-periphery and inter-state disputes have not disappeared (it would be unrealistic to expect that they ever will), but those generated by linguistic nationalism have largely subsided. In particular, the movement in South India, particularly Tamil Nadu, for secession has disappeared. The realization of an acceptable measure of internal self-determination has undermined the case for external self-determination.

The lesson is that all facets of ethnic identity, viz. language, religion, etc., have the potential to play positive or negative roles in national integration. We may also note that because of the principle of contiguity, even after reorganization, every Indian state retained a degree of pluralism. Since then, the degree of pluralism has increased through free movement of the population across India, further enhancing the unity and integrity of that country. This development has been facilitated, not hindered, by the adoption of linguistic homelands which ensured that:

- (i) No linguistic group felt threatened with loss of identity.
- (ii) Those who wished to live in a territory administered in their mother tongue were free to move into such a territory; and those who wished to move into another, for whatever reasons, were also free to do so.

Regional Autonomy

Is regional autonomy a half way house to separation? If so, why have those fighting for secession, whether in Sri Lanka or elsewhere, sought to sabotage rather than support the functioning of devolved institutions? In one sense, the various gradations of internal self-determination may be seen as spanning the gap between external self-determination and a unitary regime. This is so in respect of the powers devolved from the center to the periphery. But, in other respects, to move from a unitary regime to internal self-determination is to move in the opposite direction, away from secession — morally (in terms of justification), politically (in terms of the feasibility of that option) and in international law (extending to respect for the territorial integrity of the state).

The transformation from a (failed) unitary to a (new) plural regime is, invariably, the outcome of extended negotiations resulting in both a contract between the leaders of the groups previously in conflict and a fresh constitution. That contract, if honoured by either side, imposes moral and political pressure against unilateral repudiation by the other. Both within the country and beyond, the new constitution, in contrast to the failed one it has replaced, has a compelling legitimacy. Moreover, in international law, the recognition of the right to internal self-determination and the adoption of appropriate agreed constitutional and administrative reforms will serve to delegitimize the right to external self-determination — *vide* extract below from Devanesan Nesiiah, Tamil Nationalism, Mar ga Monograph Series, 2001 (pp. 22-24).

In international law, the right to secede is only one of the options and even that option cannot be exercised unilaterally. In fact this question was posed by the Governor in Council of Canada to the Supreme Court (1998) as follows:

...[Is] there a right to self-determination under international law that would give the National Assembly, legislature or government of Quebec the right to effect the secession of Quebec from Canada unilaterally?

In response, the Supreme Court of Canada (1998) set out its opinion very clearly:

126. The recognized sources of international law established that the right to self-determination of a people is normally fulfilled through internal self-determination a people's pursuit of its political, economic, social and cultural development within the framework of an existing state. A

right to external self-determination (which in this case potentially takes the form of the assertion of a right to unilateral secession) arises in only the most extreme of cases and, even then, under carefully defined circumstances

127. The international law principle of self-determination has evolved within a framework of respect for the territorial integrity of existing states

130. ... There is no necessary incompatibility between the maintenance of the territorial integrity of existing states, including Canada, and the right of a people to achieve a full measure of self-determination. A state whose government represents the whole of the people or peoples resident within its territory, on a basis of equality and without discrimination, and respects the principles of self-determination in its internal arrangements, is entitled to the protection under international law of its territorial integrity.

134. A number of commentators have further asserted that the right of self-determination may ground a right to unilateral secession when a people is blocked from the

meaningful exercise of its right to self-determination internally. The Vienna Declaration adds credence to the assertion that such a complete blockage may potentially give rights to a right of secession.

We note that the Canadian Supreme Court and much of the literature on the subject (e.g., Steiner and Alston, 2000) draw a clear distinction between internal and external self-determination. Effective provision for internal self-determination (e.g., federalism combined with non-discrimination), far from paving the way for unilateral secession, delegitimises any recourse to it. On the other hand, the denial of due internal self-determination could legitimise a right of secession.

Finally, is there a widely recognized understanding of the term internal self-determination? Perhaps we may settle on the broad definition offered in the above quoted judgments of the Canadian Supreme Court, viz. a people's pursuit of its political, economic, social and cultural development within the framework of an existing state. ■

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THE ECONOMICS OF PEACE: THE WORLD BANK, INFORMATION ASYMMETRIES, AND THE POST-CONFLICT INDUSTRY

Darini Rajasingham-Senanayake

*Would it not be simpler, if the government could dissolve
the people and elect another?*

(Bertolt Brecht)

*Knaves will tell you that it is because you have no property
that you are un-represented. I tell you, on the contrary, that
it is because you are unrepresented that you have no
property.*

(English Chartist Bonterre O'Brien, 1846, quoted in
Elizabeth Wood, *Forging Democracy from Below: Insurgent
Transitions in South Africa and El Salvador*, CUP, 2000)

Introduction

Wars, including struggles for ethno-national self-determination and representation are fought to change the power-property status quo. If a peace process fails to adequately acknowledge and address issues of economic and social inequality that structured the conflict, while balancing changes wrought in the war years against return to the pre-war power-property status quo, it may result in an unsustainable peace that becomes a blue print for renewed violence, years or decades later. Thus, in a recent book published by the Washington-based United States Institute for Peace, titled *Effects of Violence on Peace Processes*, John Darby notes: Of the thirty-eight formal peace accords signed between January 1988 and December 1998, thirty one failed to last more than three years. Darby suggests that the reason for this state of affairs is that stopping wars is far more difficult than starting them, and that when political violence is ended by a ceasefire it reappears in other forms to threaten the peace process. He suggests that a peace process must be forward looking and potential spoilers of the peace must be on board, for if not they may destabilize the peace process. In Sri Lanka this would include potential spoilers who may use local conflicts and social and economic inequality that are not directly related to the macro armed conflict between the LTTE and GoSL.

A number of studies of the two decades-long armed conflict in Sri Lanka have noted that the war was not simply an ethnic affair but rather a complex emergency. The war was sustained and fuelled by a range of global and local actors and factors including rural poverty, unemployment, and caste marginalization (particularly in northern Tamil society and in the deep south). The

majority of those who fought, died, and were disabled on both sides were drawn from the rural poor. Additionally, in the last decade a war economy that developed a self-sustaining momentum emerged, as a number of trans-national actors and networks, from the diaspora to the military and humanitarian industry stabilized and sustained the conflict dynamic as the economy structured into a war economy. While a range of political actors and elites made profits through corruption, terror and taxation the military became the leading employer of a class of marginalized youth from low-caste communities in the north and south alike. Simultaneously, as Professor Tudor Silva of the Centre for Poverty Analysis has noted, economic inequality and poverty cleavages tended to be ethnicized and politicized due to the circular dynamic of poverty and ethnic conflict (cf. Mayer, Rajasingham-Senanayake, Thangaraja, 2003). The connection between rural poverty and the sustainability of peace has been made in other studies of peace settlements. In *Forging Democracy from Below: Insurgent Transitions in South Africa and El Salvador*, Elizabeth Wood suggests that peace processes that address economic re-distribution including land reform have a better chance of long-term success. Wood's arguments are relevant for Sri Lanka. Yet in the current post-conflict settlement discussion while the issue of power redistribution via a devolved and federated system has received high priority, issues of social and economic inequality are not being addressed in any systematic fashion.

Free Market and Social Justice

The presumption on faith propounded by the Minister for Economic Reforms seems to be that the free market would take care of social and economic justice issues that fuelled the conflict in the Washington Consensus (World Bank and IMF). There has been relatively little discussion of the political economic transformation to society that 20 years of war had generated. Debate on post-conflict reconstruction policy is largely framed by legal-bureaucratic considerations at the national level as to how power vested in a highly centralized state may be devolved to the regions? The public debate considerably influenced by global recipes for post-conflict reconstruction focused on (neo-liberal) institution building and constitution design and the need for good governance. In the context, it is not hard to see how economic hardship and social disaffection caused by spiralling costs of living, unemployment exacerbated by layoffs, a sealing on public sector

hiring for structural adjustment programs (SAPs), and privatization of essential services including public utilities (the standoff between the multinational gas duopoly Shell and Laufs and the Consumer Protection Authority being exemplary), may be used by peace spoilers who have significant constituencies among those who bare the brunt of the current phase of economic restructuring which in most parts of the world had demonstrably increased socio-economic disparities and cleavages (Cf. UNDP Human Development Report 2000).

In this context, the question may be raised as to why the GoSL and the LTTE have chosen or been impelled to chose the World Bank to be the custodian of the post-conflict fund? And on what basis? Historically, the United Nations is the international organization charged with and experienced in dealing with post-conflict reconstruction (East Timor being a recent example). Moreover, the UN agencies despite numerous critics have a relatively open attitude to human security, local voices, priorities and knowledge systems than has the World Bank, since it is not so closely allied to international finance and corporate interests, and in the grip of what Joseph Stiglitz, Nobel prize winning economist and ex-Vice President of the World Bank, terms market fundamentalism in his book *Globalization and its Discontents*. Is the World Bank then a more or less neutral actor or will it ensure that the peace is structured to suit the agendas of international finance and corporate capital while making Sri Lanka vulnerable to fluctuating global financial markets as the world economy goes into recession (as occurred in Argentina)? As conflict, security and development are increasingly linked will it disburse funds to projects that have a less capital friendly and more social justice focus?

These questions must be asked by the Sri Lankan public who support the peace process and wish to ensure its sustainability. There are other reasons for concern. A range of social conflicts have escalated in Latin American countries that undertook uncritical structural adjustment programs (SAPs) that made them vulnerable to fluctuations in global financial markets at the behest of the World Bank and IMF (riots in Argentina being a recent dramatic case). Likewise, historically, international finance capital, dictators and military juntas have been allied to safeguard their interests and deflect social justice issues embedded in complex conflicts. In this respect, the controversial analysis of violent conflict coming out of the World Bank research project led by Paul Collier on *The Economics of Civil War, Crime and Violence* is not encouraging. Collier claims that it is greed rather than grievance, (as if these are not relational terms). He suggests that the profits made by war lords and armed groups explain violence. He thus rules out economic grievance as a cause of violence. While this kind of analysis may explain the proposed Bush-Blair resource war on Iraq, it is telling in its misguidedness and ignorance of local issues, international political economic and global power/knowledge hierarchies that structure complex conflicts in the global south, and does not augur well for a sensibly theorized post-conflict reconstruction program supervised by the Bank in Sri Lanka. If the World bank is to be the custodian of the post-conflict fund the

question arises: will the peace dividend become available to those marginal communities and social groups that were most brutalized and instrumentalized by the war economy? In short, would a neo-liberal post-conflict peace that exacerbates socio-economic disparities as SAPs and sector adjustment programs are pushed through along with post-conflict reconstruction, and the questionable promise of long-term economic growth despite the growing global recession enable a sustainable peace? Is this constellation of actors and interests a recipe for a new cycle of violence that may destabilize the peace process in Sri Lanka? To answer this question it may be relevant to look back on how almost two decades of armed conflict was represented and analyzed in the World Development discourse in Sri Lanka.

Representing Development: 'Growth with War' and other Sustainable Myths

During the Second and Third Eelam wars (1990-2001), a public myth existed in the south of Sri Lanka that relatively high levels of economic growth could be sustained in the island while an expensive armed conflict was waged in the North-East provinces.¹ As the People's Alliance government went ahead with structural adjustment programs (SAPs) and privatization of various profitable and debt-ridden government holdings just as the previous UNP government had done, the numbers of BMWs and Alfa Romeos that cruised the highways and bi-lanes of Colombo, the southern capital, were on the rise. Signs of a growing economy and a market for luxury goods were apparent in the larger cities and in the display of sophisticated weapons to and communications technology in the security sector. The Central Bank projected national growth figures of five percent, a figure that helped the ruling party to win local and national elections and attract foreign investment. International development organizations such as the World Bank, IMF, and UNDP projected similar growth figures.

The late 1990s were years of converging national statistical percentages in Sri Lanka. While defence spending was five percent of GDP, donor assistance also hovered at around five percent GDP. That international aid might subsidize the armed conflict given fungibility of aid was not missed by a number of commentators. Yet if research staff in leading national institutions of higher education such as the University of Colombo could not use the internet because the Ministry of Higher Education could not pay its telephone bills and the library could not buy books and journals due to the toll of the war economy on the education sector that was being restructured, the international financial institutions turned a blind eye to military spending despite widely known and rumoured corruption in the military sector and the defence ministry. While structural adjustment to education, health etc., sometimes bringing long overdue reform to these sectors were on the cards, structural adjustments of the military and state's coercive apparatus was not on the cards.

Indeed, the IMF appeared to systematically underestimate the Sri Lanka government's underestimation of its own military expenses (discussion with IMF representative at ICES—August 2001) while the Sri Lanka government seemed to practice home grown military Keynesianism.² The continuing failure of the international development industry to address military budgets of governments at war with segments of their populations remains the scandal of international development industry. In Sri Lanka the growth rate of about five percent in the late 1990s despite the war seems to have been used to bolster the argument that neo-economic liberal structural adjustments works — even in conflict situations. What was ignored was that after almost two decades of armed conflict the rural economy seemed to be substantially and increasingly dependent on non-productive activity, i.e., war making (cf. Dunham 2000).

During these years, national statistics impervious to the law of averages, that excluded the under-performing north and eastern conflict affected provinces were produced by the Central Bank and seconded by organizations such as the World Bank and UNDP. It was suggested that excluding the northern and eastern provinces from national statistics was insignificant since population densities in those provinces were low, and would not affect per capita calculations.

Of course, statistics and information on the conflict zones were highly politicized, particularly given claims and counter-claims regarding human rights violations, numbers of displaced people, and food aid to be sent to the war zones. During the years of the third Eelam war that started in 1995 with the collapse of the peace process that had commenced when Chandrika Bandaranaike-Kumaratunge became President, the military frequently and possibly correctly argued that the LTTE was inflating figures and skimming excess aid.

The information lacuna arising from the politicization of information and the difficulties of information gathering in the war zones was compounded by the censorship on media and reporting from the northeast. Because of difficulties of information gathering in the conflict zones, national data on health, education and literacy excluded the war-deprived and traumatized regions of the island. International evaluations along with national statistics on many social and economic matters provided impressionistic and often grossly misleading and optimistic scenarios of the life and livelihood in the conflict zones. It was rarely mentioned that transport was literally by bullock cart in the uncleared or LTTE held areas, given the fuel and fertilizer embargo, while the economy and market had been bombed into the dark ages, and food security eroded.³

The information lacuna in turn perpetuated a number of myths that sustained the conflict, both at the level of policy as well as in popular discourse. As the conflict escalated in the 1990s, the notion that growth with war is possible appeared to be the operative fiction in policy circles. Meanwhile the conflict generated a war

economy with military service becoming the leading income generation project for young men from rural areas even as it generated new forms of social and economic inequality and marginalization (eg. Muslim-Tamil conflicts in the east coast). That Sri Lanka, the South Asian leader in social indicators, may be slipping in health and education, and mortgaging its future as the numbers of disabled increased, and the economy structured into a war economy, with the rural sector increasingly dependent on soldiers wages was not mentioned. Of course a second scenario of Sri Lanka's conflict-development nexus that focused on the social costs of war, was captured in popular films, other critical media, and by various studies by NGOs but with little impact.⁴ Squaring the circle — an analysis of which sectors benefited from the war economy and SAPs and which did not remains to be done.

On the other hand, the devastation of war in the north and east gave credence to LTTE claims that they had nothing more to lose, and hence must fighting an opponent intent on decimating them to the end. The war years made clear the domestic economic policy is increasingly a global affair. As the country became increasingly dependent on aid for fighting the war the international financial institutions and successive governments pursued a neo-liberal policy of economic restructuring. As privatization appeared to sustain the myth of growth with war, a number of other local and micro-conflicts were displaced upon the over determined war between the military and the LTTE. The myth of growth with war was rudely shattered by the LTTE attack on the airport and the manner in which the economic growth entered a negative for the first time in its post-colonial history.

Representing Development: Information Asymmetries and Power/Knowledge Hierarchies

International measures, indexes and observations of success or failure of nation-states, economies, or people, have their own logic. They establish authoritative descriptions, and construct truths about national progress or regress. Indeed a number of theorists of development and developmentalism (Escobar, 1995; Nandy, 1983; Gupta, 1998) have noted, that in the trajectory of world development, peoples, nations, regions, and the third world have come to see themselves as more or less developed, underdeveloped, and more or less in need of development, or social capital, or institutions, or better governance, or globalization etc. They have also suggested that development processes might actually de-develop societies, and have traced how development indicators may conceal increasing economic inequalities and social and regional polarization.

In countries with skeptical publics, information from international development and financial institutions are sometimes given greater authority because of the presumption that they may be more independent and accurate than government's figures. In turn, these authoritative indexes, measures, and narratives of developmental progress or regress configure local perceptions of local conditions.

Sometimes, these constructions and their policy agendas elicit counter-reactions and ethno-nationalist back lashes.⁵ In noting this dynamic of how a country may be measured, evaluated, and restructured for World Development, my purpose is not to suggest that poor people or armed conflicts do not exist. Rather it is to mark how poverty qua poverty, or conflict qua conflict, are constituted as objects of and for analysis and developmental-relief intervention (read power/knowledge), and how such interventions are legitimated.

In the late 1990s as the war escalated in Sri Lanka local and global political-economic processes and imperatives configured the dominant representation and interpretation of the conflict-development nexus in Sri Lanka, that growth with war was possible. The notion that war with growth was possible is a corollary of the economic reductionism that characterizes the argument that violence is economically rational and it is greed rather than grievance that fuels conflicts (Collier et al., 2001). 1997-98 were years when the Bank and IMF were increasingly critiqued on the crisis and escalating social violence in the Asian Tiger economies. Internally, in the World Bank, Stiglitz had criticized IMF policies and suggested that developmental macro-policy may fuel and deepen the crisis and ensuing violence in South East Asia (Stiglitz, 1997, 1998; Wade, 2000). In this context, success stories even in conflict torn societies were needed. In *Missed Opportunities*, the World Bank's Sri Lanka country report in 2000 suggested that Sri Lanka is a relative success in terms of economic liberalization and structural adjustments.

A story of operative fictions and mutual entrapment between international financial institutions and a government fighting a dirty war (given that national economic policy is increasingly globally configured), amidst an increasingly dysfunctional democracy emerges in the myth that growth with war was possible in Lanka. This entrapment in turn sustained the war dynamic which developed self-sustaining momentum (Rajasingham- Senakayake, 2001). The myth was shattered after the LTTE attack on Katunayake airport in July 2001 that impacted on sectors dependent on external markets, particularly trade, tourism and shipping, and the growth figures dipped from 5% into negative digits overnight. This entrapment may continue with the peace dynamic too with the government and World Bank promoting an unsustainable neo-liberal peace.

The myth that growth with war was possible was also enabled by the history of perception of the island as an outlier in the fifty-year-old world development discourse. Sri Lanka had always followed the path of the unexpected. At independence in 1948, armed conflict was not on the island's development agenda. The island's social indicators that were the best in the South Asian region despite very low per capita income, placed it in the category of outlier in the development discourse for decades. Moreover, a multi-lingual, multi-ethnic, multi-faith, and multi-cultural land, Ceylon as it was called then, had been considered a model

democracy until the mid-1980s. In the years of the conflict, growth in the south despite a debilitating armed conflict in the north and east further buttressed Sri Lanka's standing as an outlier in the world development discourse, and enabled the perception that it was a land of missed opportunities. The outlier perception of Sri Lanka masked the island's de-development and deep regional divisions that fuel the armed conflict in the island.

Indeed, it is arguable that the regional disparity between the conflict affected North-East and the rest of the island constituted one of the biggest challenges of peace building and development, even as the central barrier to human development in Sri Lanka may be the information divide and information lacuna. The engineering of information and the resulting ignorance generated at the highest levels of policy and opinion making on the national impacts of the war was one of the reasons that the war escalated to dire proportions, without giving rise to an anti-war peace movement in the late 1990s.

Conclusion: De-Development and the Poverty of Theory in Post-Conflict Policy

Post-conflict reconstruction, a growth sector in the world development industry led by the Bretton Woods institutions is about information asymmetries, global-local hierarchies of knowledge and power and the marketing of myths and models of development. Recognition by the development policy community that Sri Lanka was a complex emergency and that violent conflicts could undo years of development achievements, has not entailed acknowledgement of the converse process: that the macro-policies and practices of (uneven) development may also structure and fuel domestic political-economic transformations and societal polarization leading to violent conflicts. Possible linkages between development processes that exacerbated social inequality and a number of social tensions (JVP and LTTE youth uprisings), contributed to overdetermine the north-south ethnic divide in the island, and hence the need for mainstreaming conflict analysis into development policy and planning are hardly acknowledged. There is a need to link macro-policies of development to the local war economy in the conflict zone, rather than treating them as separate.

It is arguable that trans-historical ethnic readings of the violence in Sri Lanka and neo-liberal myths that growth with war is possible in the dependent economies of the global south have obscured issues of economic and social inequality that structured the two decades-long armed conflict in the north and east of Sri Lanka. They also obscured how the war had transformed the island's society and political economy. But issues of political representation and economic justice are inextricably linked: self-determination will remain an unfulfilled promise without economic and social rights.

After the initial de-politicization that the peace process necessitated, it would be necessary to move on and deal seriously with political

economic issues by linking civil and political issues of demilitarization and de-escalation with social justice issues or economic and social rights. Post-conflict reconstruction must have a holistic approach and move beyond a formalist legal approach to devolution and power sharing among the armed actors and the State, and address issues such as poverty, inequality and their relationship to macro-policies of economic adjustment and conflict. Otherwise, the risk is that a peace agreement might once again become a blue print for more war, or be merely a trade off between armed groups and politicians who peddle ethnic conflict or ethnic peace to shore up their vote banks. Rather, the need is for substantive democratic reform and transformation of political culture and economic ideology and institutions (including the state's coercive apparatus) that have generated and fuelled multiple conflicts and much of the violence over twenty years.

The dominance of the World Bank in the post-conflict reconstruction industry and the manner in which a range of structural adjustments projects (including the recently stymied labour bill) are being pushed through parliament as the peace process takes centre stage in national politics may suggest otherwise. Structural adjustments usually mean that things must get worse before they get better if ever. Things getting worse usually mean another cycle of conflict that is very hard to stop once started, as Darby has noted. The timing of these interventions in the long-term may lead to increased levels of unemployment, spiralling cost of essential services and living and the unravelling of the peace process by spoilers who exploit popular disaffection. Argentina, where riots and social unrest has occurred in the wake of massive neo-liberal reform, sounds a warning to us all.

My purpose here is not to decry all reform. Certainly reform in the energy, education, public and social sectors and administrative and governance structures is necessary. The point, however, is that the neo-liberal agenda may not be the most appropriate type of reform. What seems to be forgotten in the post-conflict and developmental emphasis on good governance (based on the model and language of corporate governance despite Arthur Anderson, Enron and the expanding of corporate scandals) is that institutions are embedded in social, cultural and political process. The formalist focus institutions and constitutions often reduce democracy to actually existing free market democracy and may result in a new cycle of war as peace spoilers use the grievance of spiralling costs of living and real and perceived increases in economic inequalities to upset the peace.

Finally, the question remains: will humanitarian and post-conflict aid effectively subsidize SAPs and the country's adjustment to Global Capital(ism)? As the various MPs tour Switzerland, Canada etc., for constitutional models they may as well read Stiglitz and visit third world Latin American countries in conflict and post-conflict situations that have a far closer profile and learn from economic debate and debacles in that region, not to mention Africa. What informed critical debate in those countries may suggest is that after almost two decades of armed violence in Sri Lanka

building a sustainable peace would entail political and economic reform aimed at achieving substantive rather than ritual or procedural democracy and the need for re-distributive justice. By substantive democracy what is meant here is, economic and social as well as civil and political aspects of democratic practice.

A striking example of the failure to connect the issues of social justice with political reform is evident in how the property rights of displaced people are being addressed as if the pattern of violence and displacement in the agrarian peasant communities had no relationship to prior competition over land between peasants of the various ethnic communities, and issues of land settlement and redistribution. Redistribution has been a fundamental aspect of peace processes in Guatemala and El Salvador and other parts of the world. In Zimbabwe the failure to address the issue of land in the first instance arguable has fuelled the recent land disputes from which Mugabe has made political capital. The post-conflict settlement in Sri Lanka if it is to be sustainable in short must take into account issues of poverty and property rather than seeking to extend the interests of international corporations. In short, the peace process will have to balance the right of return of the (individual) property of the displaced with the new (collective) allotment of territory that the war has affected and notions of individual rights with notions of collective or social property.

Finally it seems a propos to quote Amartya Sen, another Nobel Prize winning economist's response to a question by a Pakistani Journalist at the Lahore based *Dawn*:

Journalist: Conditions imposed by international financial institutions sometimes prevent recipient countries, even democracies, from acting in the interests of their own people. How can this problem be solved?

Sen: I think that is a correct diagnosis, though things used to be even worse than they are today. In the past, conditions imposed by the IMF and the World Bank proved quite counterproductive instead of serving the interests of the poor. They often saw expenditure on such things as education and nutritional supplementation through cheapening of food as bureaucratic, governmental expenditure that hinders a country's efforts towards economic development. This is, of course, a mistake. But the understanding has improved in the case of the Bank under the leadership of James Wolfensohn. However, some of the Bank's practices may not be entirely in accordance with his guidelines and of course, there is need for the IMF to seize these issues more fully.

Sen sounds optimistic that the Bank can learn from the past. We will have to wait and see and monitor what's being said on the peace process in the streets of Colombo and in the post-conflict zones of the north and east. Already there are signs that some people are becoming nostalgic for the war economy, when the cost of living was less burdensome than it is today as the neoliberal peace looms on the horizon. In the meantime, it may be relevant to do a conflict analysis of the post-conflict reconstruction package by

analyzing links between the macro-policies of development including SAPs and cycles of violence. Sri Lanka simply cannot afford another cycle of conflict between its diverse ethnic and religious communities that co-existed in relative peace for centuries before the World Development industry led by the Bretton Woods institutions and the international military industrial complex came along.

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Notes

- ¹ The previous UNP government had managed to sustain growth and wage war, but by following a strategy of containing the conflict, and limited war.
² It was noted that the Government's estimate was an underestimate of total defense expenditure, after the various military service sectors were accounted.
³ See *Voices of the Poor*, ADB Poverty Study, 2000.
⁴ *Pura Handa Kaluwara* (Death on a full moon night) directed by Prasanna Vithanage, a film that commented critically on the futility of war and its social costs, was banned by the authorities and then unbanned following a prolonged legal battle and the Supreme Court ruling that the ban violated the freedom of artistic expression.
⁵ Michel Foucault's work on the dynamics of discourse and power to construct and represent an authorized social reality, and Nandy's work on how global discourses come to structure local realities and subjectivities has given us the tools to unveil some of the mechanisms by which certain orders of knowledge are produced as permissible modes of being and thinking, while others are disqualified, also in the historically singular experience, if not teleology of world development. ■

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PROPOSAL TO RESUME JUDICIAL HANGINGS

We view with deep dismay the proposal to reintroduce judicial executions after a lapse of over quarter of a century.

We are certainly concerned with crime control and law enforcement, and appreciate the serious law and order problem facing the authorities. But the death penalty is no answer.

Nowhere has the death penalty (as opposed to other punishments such as long-term imprisonment) been shown to have any special power to deter crime. On the contrary, it diverts attention from the real solution, which is prompt and efficient investigation of crime followed by effective prosecution and conviction. *The greatest deterrent to crime is the likelihood that offenders will be apprehended, convicted and punished. It is that which is lacking in our criminal justice system (South African judgment of 6 June 1995 in which all eleven members of the Constitutional Court, writing separate judgments, found the death penalty unconstitutional).*

The death penalty is irreversible, and is known to have resulted in the execution of innocent persons. In England alone there have been a number of proved instances of wrongful convictions being set aside many years later. Can we say that our own investigative, law enforcement and legal systems are such that there is no real possibility of innocent persons being convicted and scapegoats being hanged? It is precisely in cases that mostly shock public opinion that there is pressure on the police to somehow make arrests and ensure convictions. Miscarriages of justice, **of which the poor and the disadvantaged are the most likely victims**, can never be rectified. As Secretary General of the UN Kofi Annan has said, *The forfeiture of life is too absolute, too irreversible, for one person to inflict it on another even when backed by the legal process. Let states that still use the death penalty stay their hand lest in days to come they look back with remorse knowing it is too late to redeem their grievous mistake.*

It is the responsibility of an enlightened legislature to give the lead towards the adoption of rational and humane approaches to the ills of society. There is urgent need for careful and serious study of crime in Sri Lanka and the problems of investigation and law enforcement. We urge that executions not be resumed under any circumstances, and that instead real solutions to violent crime, both short and long term, be identified and pursued.

60 Signatories of academics, lawyers, doctors and activists

THE PEACE PROCESS: PROGRESS SO FAR AND CHALLENGES AHEAD

Statement issued by Lalith Abeyasinghe, Paul Caspersz, Kumar David, Marshal Fernando, Vijaya Kumar, Menaka Philips, Rajan Philips, Mahinda Ratnayake, Suhadini Wickremasinghe and Ranjith Wijesinghe.

Twenty three years ago, a few of us in this group of writers and many others, after the horrifying riots of 1977, came together to found the Movement for Inter-Racial Justice and Equality (MIRJE). One of the first decisions of MIRJE was to send a fact-finding delegation to Jaffna to determine the true state of affairs subsequent to the declaration of a State of Emergency by the government on 13/14 July 1979 and the abduction and killing of six Tamil youths on the same night. Three of us among those now issuing this Statement were in that delegation. The events of 13/14 July and the days following did not wipe out the menace of terrorism, as decreed by the then President, but they did let slip the dogs of war all over the land. Twenty three years and over sixty thousand lives later, this group of writers took advantage of the ceasefire conditions and made separate trips from Kandy to Batticaloa, the Vanni and Jaffna.

On the way to Jaffna, we had to pass through two check points, not more than a mile apart, in Omanthai, north of Vavuniya. The two check points, one under the Army and the other under LTTE control, and the respective bureaucracies sharply symbolized the reality of two polities, if not two states, north and south of Omanthai. Writing for the group after the Jaffna trip, Paul Caspersz posed the question: Is our task then not to prevent separation but to bring back into the former unity the two separated parts? It was a spontaneous question from the heart, at the end of a journey of commitment, and firmly founded on the premise of justice and equality for all Lankans. The question also provides a positive framework to critically assess the peace process: its progress so far and the challenges ahead. Contrast this to comments by the mostly unfriendly critics of the peace process, who, while being conveniently blind to the disintegration of the island's polity over the last 20 to 50 years, portray the current peace efforts not as a process of reintegration but as the path to separation from their illusions of unity.

When will the peace negotiations be held, and will they be successful? were questions we asked ourselves and that we were asked during the four days we spent in Jaffna from 16 to 20 July of 2002. The answers since then have been encouraging. Three rounds of peace negotiations were held between the Government of Sri Lanka (GOSL) and the LTTE two in Thailand and one in

Norway from September to December in 2002. The fourth round has just been concluded in Thailand. The negotiations have been successful in comparison to both the previous Sri Lankan peace efforts and contemporary experiences in other countries. After the second round, three Sub-Committees were established to address: (a) Humanitarian and Rehabilitation Needs in the North and East; (b) De-escalation and Normalization; and (c) Political Matters including constitutional, legal, political and administrative issues. At the conclusion of the third round of talks in Oslo, came the momentous announcement that the Sri Lankan Government and the LTTE agreed to explore a solution founded on the principle of internal self-determination in areas of historical habitation of the Tamil-speaking peoples, based on a federal structure within a united Sri Lanka, and that the solution has to be acceptable to all communities. The third round also agreed on the setting up of a Sub-Committee on Women to address gender issues in the peace process. The focus shifted, in the fourth round of talks, to the humanitarian aspects of the conflict, and the parties noted that political progress must be underpinned by tangible improvements in the daily lives of the people. The talks also survived the somewhat overblown controversy over rehabilitation and the High Security Zones (HSZ) in Jaffna.

In Support of the Peace Process

We do not agree with the inveterate sceptics that the peace talks are a smoke screen for the LTTE's preparations for the next offensive in its relentless march towards Eelam. On the contrary, the peace talks are subjecting the LTTE to national and international constraints and commitments as it has never experienced since its inception. The next Eelam War can only be prevented by strengthening and institutionalizing these constraints: prophesying the war, on the other hand, will directly contribute to its self-fulfilment.

One of the constructive criticisms of the peace process is that the process is monopolized by the UNP, the LTTE, and their immediate supporters. This has led to feelings of exclusion in the South and among the Muslims, and the fear of a totalitarian peace becoming the lot of the Tamils in the LTTE-dominated areas in the North and East. To learn from previous experience, an exclusive UNP-LTTE agreement, however grand and comprehensive, will not pass muster without a broader consensus involving other players and the people at large. But these concerns will have to be addressed by critically supporting, consolidating and expanding the current process to

make it inclusive and accountable, and not by vexatiously opposing and undermining it.

The People's Choice

Contrary to the professions by post-1983 Sri Lankan governments, and the assertions of the LTTE and other Tamil militant groups, war was never the choice of the people, Sinhalese or Tamil. The biggest story of 2002 is that ordinary, subaltern Sri Lankans in their millions Sinhalese, Tamils and Muslims have been able to emphatically demonstrate that peace is their only choice. It is the responsibility of all Sri Lankans to ensure that our political leaders do not betray this unambiguous choice of the people.

It is worth noting that unlike the conflicts in Israel-Palestine, Northern Ireland, Kashmir etc., where neighbours fight neighbours politically and socially, the social relationship between the Sinhalese, the Tamils and the Muslims, never deteriorated to the same extent as their political relationship. Indeed, the leader of the LTTE Jaffna Branch told our group that the social relationship between the communities remained positively cordial even during the war. In Jaffna, we saw Sri Lankan government soldiers going about in bicycles, very different from the days when tanks and armoured cars terrorized unarmed civilians. In Kayts, we were told that the LTTE cadres sometimes undertake the delivery of meal parcels to soldiers at isolated army checkpoints.

The people in the South have witnessed and experienced the effects of the war for years on end. The destruction of public property, the stealthy shadow of the suicide bomber, the arrival of body bags at Ratmalana, the village funerals of dead soldiers, and the social ubiquity of maimed war returnees these have been the stock experiences of the Sinhalese in the South. Who in their right minds, except those who demonically profited from the war and others who unconscionably invoke the doctrine of just war, would wish to return to those horrible days? The Sinhalese voters have endorsed the peace efforts in election after election every time the question was put to them beginning in 1994. They have also celebrated the current ceasefire by thronging the traditional Vesak and Perahara ceremonies, by congregating hugely in Madhu in LTTE-controlled Vanni, and by their incessant pilgrimages to the Naga Vihare and the Naga Dipa in Jaffna.

Our visits to Jaffna, the Vanni and Batticaloa have shown us the even more devastating war experiences of the Tamils and Muslims in those areas. Their fervent hope is not so much for peace in full regalia as it is for the current ceasefire to continue whether or not an agreement is reached. We saw not only how these areas have become separate from the rest of Sri Lanka, but also how they were separate from each other. The LTTE Police Stations and Courts in the Vanni area are not the cause of this separation but its symptoms. More damaging is the destruction of the infrastructure linkages roads, railways and electricity transmission between the Northern and Eastern provinces and the rest of the country.

The key sectors of Jaffna's economy farming, fishing and commerce are isolated and atrophied. Tens of thousands of farmers have been affected by the reckless landmining of their farmlands. About 6,000 of the 11,000 fisher households in the Peninsula, who once supplied 30% of the country's fish requirement, are now internal refugees and cut off from the sea. For over ten years, the Sri Lankan government has been banning ocean fishing by Lankan Tamil fishermen for security reasons, while doing nothing to stop Indian trawlers fishing in Sri Lankan waters. After several years electricity was restored in Jaffna in April 2002, while the first overland supply of kerosine and petrol in ten years arrived in Jaffna in July 2002. Nearly 400,000 of the (pre-1995) 900,000 people of the Jaffna Peninsula are displaced within Jaffna and on the tracts of the Vanni. The size and misery of the internally displaced has shocked even international visitors who are familiar with human tragedies elsewhere in the world.

Displaced and devastated the people of Jaffna made the most eloquent statement for peace by standing neutral when the LTTE took on the Sri Lankan army to recapture Jaffna in 2000. Even now they simply want to be left alone. What is more, no Tamil individual or group has condemned the LTTE for all but turning back on its declared goal. In earlier times, such an act would have been called a betrayal and the price of betrayal varied from the simple loss of a Parliamentary seat to the ultimate price of one's life. The LTTE itself was a past master in meting out capital punishment for perceived betrayals.

War and Politics

War is a continuation of politics, but politics is the conclusion of the war. While peace became the experiential choice of the people, economic realities, military experiences and international developments combined to force the GOSL and the LTTE to leave the battleground for the negotiating table. The economic consequences of the separation between LTTE territories and the rest of the country exposed the non-viability of a separate state and challenged the LTTE's commitment to it. This became evident from the time the LTTE began insisting on having points of free passage between its territory and the rest of the country. The war has also exacerbated the differences between Jaffna, the Vanni and the Eastern Province, and there is no uniform solution to the challenges and issues facing the peoples of these areas not only the Muslims and the Sinhalese in the Eastern Province but also the Tamils in the three areas.

Militarily, while battles were won and lost, the war was proving to be unwinnable for either side. The LTTE inflicted crushing defeats on the army in the year 2000, including the capture of the Elephant Pass, but the army was able to hold on to Jaffna despite the LTTE throwing everything it had into what it thought would be the final battle against the army. Baulked of a victory in Jaffna, the LTTE hit back by attacking the Katunayake International Airport in August 2001. The economic meltdown and the business panic that followed

were the last straw to force the new UNF government to abandon the military approach and pursue the negotiation option.

On the international front, the implications of September 11 for Sri Lanka and the LTTE have been mixed. If nothing else, it finally confirmed to the LTTE the virtual impossibility of securing international recognition for a separate state in Sri Lanka. However, while declaring war on international terrorism and outlawing LTTE operations in their own countries which restricted LTTE's financing operations in the West, the Western governments came to recognize the LTTE as a necessary party to any settlement in Sri Lanka. There are a number of reasons for this apparent double standard. Despite its far reaching tentacles among the Tamil diaspora, the LTTE's operations have never posed a threat to the West in the way international militant Islamic movements are perceived to threaten the West. Like in Northern Ireland, Islam is not a factor in the Sri Lankan conflict, and Sri Lanka is the one instance where religion is not an issue in the conflict. Lastly, although Sri Lanka is one of the world's long standing conflict areas, it has no potential for escalating into an international or even regional crisis, unlike the Middle East, or Kashmir.

Those who insist that the GOSL should have exploited the post-September situation to defeat the LTTE with external help, also refuse to realize that the so called war on terrorism has either been unsuccessful in resolving, or simply exacerbated, the conflicts in Afghanistan, the Middle East, Chechnya and Kashmir. New flashpoints are threatening in Indonesia, the Philippines, North Korea and even parts of Africa. Even in Northern Ireland, where September 11 contributed to the IRA's decision to decommission its arms three and a half years after the Good Friday Agreement of 1998, new political roadblocks are stalling the peace process.

Prime Minister Ranil Wickremasinghe has been criticized for allegedly compromising national sovereignty by getting Norway and other governments involved in the peace process. The fact, however, is that it was President Kumaratunga who started the current foreign involvement albeit for proscribing and talking to the LTTE at the same time, and the same critics did not spare her at that time. The real question is that if it is alright for Sri Lankan sovereignty to get Western help to make war with the LTTE, why then it is not alright to get the West to mediate peace with the LTTE and insure that the LTTE will not revert to fighting again.

The Principal Players

One of the main arguments against the current peace process is that it has been used to politically rehabilitate the LTTE. Given its past record and continuing, although highly reduced, infractions, the LTTE is one of the easiest of targets for verbal castigation. But in the context of the vicious violence that Sri Lankan politics had become enmeshed in over the last 20 years, there are few around with clean hands, and that includes Sri Lanka's big neighbour, the post-Nehru India. As the Catholic Bishop of Jaffna said after the LTTE press conference in April, 2001: he

(Prabaharan) did not express remorse, but neither has the government. The state and the LTTE are both blameworthy, even if not equally in law, but if the current peace efforts are to lead anywhere they and others have to tap on their respective transformative potentials. In a world struggling to resolve its political conflicts, the growing ethos is not one of insisting on an eye for an eye and a tooth for a tooth, but a culture of amnesty based on acceptance of responsibility.

In many respects, the current UNF-LTTE peace process is a continuation of the initiatives of the PA government. In fact, it was the PA government that brought about a paradigm shift in Sinhalese political thinking in regard to the national question. Chandrika Kumaratunga deserves all the credit for being the first Sinhalese state leader, as President or Prime Minister, to admit that the Sri Lankan state had failed in the task of genuine national unification and to articulate constitutional changes to redress that failure. This will be her historical legacy even though her ill-advised military misadventures and her inability to reach consensus across party lines in Colombo ultimately thwarted her constitutional efforts and brought down her government in the 2001 Parliamentary election. The Norwegian route to the LTTE was also opened by her, despite her failed attempt to negotiate with the LTTE in 1994/95, and despite being the target of a failed LTTE assassination attempt in 1999. She also initiated the rehabilitation program in Jaffna with the EPDP as her Tamil political ally.

According to a number of sources, the EPDP's involvement in the rehabilitation work in Jaffna, with access to state resources, was an important consideration in the LTTE's decision to pursue a counter-partnership with the UNP. The LTTE found a willing partner in Ranil Wickremasinghe, who would seem to have chosen to bet his political career on a deal with the LTTE when he and the defeated UNP were opportunistically abandoned by all Tamil parliamentarians for the new PA government in 1994. The UNP and the LTTE got their chance to strike a peace deal when Ranil Wickremasinghe was elected Prime Minister in the 2001 December election. Whatever might have been his subjective intentions, the objective results of his peace initiative are proving to be beneficial to the country. The young members of his team have brought a new generational freshness and a conciliatory approach to an old and vexed problem which had often been complicated in the past by personal prejudices and egotistical intransigence. Their new approach appears to be resonating well with most of the people. Without the fear of war and insecurity the natural openness and conviviality of the Sri Lankan people are resurfacing.

On the negative side, President Kumaratunga has been taking a tantalizing approach to the peace process. Her formal statements support the peace process, but her habitual indiscretions and the actions of her main advisors and her brother, Anura Bandaranaike are clearly aimed at undermining the peace efforts. The LSSP and the CP have dissociated themselves from the statements and protestations of Sarath Amunugama and Lakshman Kadirgamar, and the SLFP leadership's growing closeness to the JVP despite its

overt opposition to the peace process. Although, the People's Alliance might have run its course, the UNF and the LTTE should reach out to those sections of the PA - sections of the SLFP, the Left Parties, the NGOs and a large number of dedicated individuals, who are supportive of the peace efforts even though they are not included in the process.

History will repeat itself more tragically if the UNF and the LTTE do not broaden the support for the process, and at least try hard to secure the support of President Kumaratunga and the Sinhala constituency she currently represents. A rather disappointing feature of the peace process so far has been the government's lack of effort to reach out to the Sinhala people and keep them constantly informed of the unfolding process. The government should realize that its ultimate constituents are the country's people and not the diplomats in Colombo.

In the North and East, the LTTE not only has to appear to be changing but also has to change for real. There have been justifiable concerns raised about the LTTE's continuing harassment of its political opponents, uneconomic taxation practices, and violations of human rights including the recruitment of children as soldiers. It is absurd to argue that these violations constitute a failure of the peace process. They represent only a failure of the LTTE to fulfill its new obligations. The merit of the peace process is that for the first time there is a forum for raising these issues and to put pressure on the LTTE to stop its violations of human rights.

The LTTE's newness to the political process and the national and international limelight it is now enjoying are certainly conducive, if not compulsive, to the LTTE saying the right words at the right time and in the right place. But its words have to be matched by deeds at places where they matter, in the Northern and Eastern Provinces, among the Tamil people, whom it claims to represent, and in a manner that does not harm the welfare of the Muslim and Sinhalese living in these areas. Circumstances and the force of arms have made the LTTE the sole representatives of the Tamil people at the talks. But to the extent internal self-determination in political theory means consolidation of democracy based on individual rights, the LTTE should realize that ultimately sole representation without free and fair elections would be inconsistent with even the elementary norms of democracy.

We would hope that the future talks will emphasize not only self-determination but also co-determination especially in regard to dealing with issues of the peoples of the Eastern Province. Muslim representation at the talks is currently provided by the Sri Lanka Muslim Congress as part of the government delegation, and there has been agreement between the LTTE and the SLMC to work together in the East in addressing the specific concerns of the local communities.

The Challenges Ahead

A common feature in all previous attempts at resolving the Tamil national question, from the celebrated Bandaranaike-Chelvanayakam Pact to the over-drafted Kumaratunga Constitution, has been the emphasis on reaching a grand conclusion in the form of legalistic agreements, legislative changes, or a comprehensive constitutional solution. Invariably, these end products became the targets of immediate political opposition and were either not fully implemented (e.g. the 13th Amendment) or abandoned. There was no emphasis on incremental steps, developing a normative consensus and inclusive participation, and a process that would continue notwithstanding government change. Until the 1970s, the fundamentals of the State were in place and the agreements, if successful, would have stemmed its slide into ethnic majoritarianism. At the present time, with the State disintegrated in some parts and dysfunctional for the most part, incremental reintegration and rebuilding, and inclusive participation are necessary conditions for success.

Although the four rounds of peace talks held so far have gone well, the talks appear to be taking on a globe-trotting momentum with the risk of being isolated from the issues on the ground. The people are not expecting a grand resolution of the so called 'core issues' but tangible improvements in the economic conditions of all Sri Lankans in general, and the restoration of normalcy in the war affected areas. Without evidence of change cynicism and disenchantment will grow in the South, while frustration and despair will engulf the peoples of the North and East. A compelling experience of change can come through opportunities to participate in the rebuilding and restorative activities. While it is impossible to ensure participation by everyone and in large numbers, the opportunities for participation should not be restricted to UNF and LTTE supporters and cadres.

The participation at the talks has been limited to UNF and LTTE representatives, but the Sub-Committees could be opened up to other participants to include representatives of the different ethnic communities in different areas, local political organizations and NGOs. We welcome the announcement of the members of the Sub-Committee on Women, and urge that the same approach be extended to the other Sub-Committees as well. This will be the first step towards a plural democracy.

The functions of the Sub-Committees should be decentralized to deal with different issues in different areas, and provide the building blocks for a federal society. A federal state presupposes a federal society; there are plenty of federal models in the world to draw from, but it is necessary to prepare the Sri Lankan terrain to receive the preferred federal structure. The Provincial Council System and the Kumaratunga Constitution were attempts at top-down federalism. There is now an opportunity to reverse that process, without creating additional layers of bureaucracy and (unelected) political representation that duplicates efforts and wastes resources.

Already, the country is paying for multiple layers of governance with little consideration being given to streamlining and co-ordinating their functions.

The issues raised at the talks and assigned to the Sub-Committees are difficult issues that require complex trade-offs and a work in progress approach rather than an insistence on instant agreements. The insistence often comes from outside detractors who for whatever reason would like to demonstrate that the talks are foundering rather than suggesting constructive ways to get over manifestly difficult situations. A case in point is the issue regarding the resettlement of displaced people in the army's High Security Zones (HSZ) in Jaffna, and the decommissioning of arms by the LTTE.

Not so curiously, the first insistence was on the absolute decommissioning of arms by the LTTE, and that was how the critics greeted the Oslo announcement that the LTTE had agreed to work towards a federal solution. Then came the Sri Lankan Army's requirement that vacation of HSZ areas by the army for resettling displaced people should be linked to the LTTE's decommissioning of its heavy weapons around these areas. While there was understandable brinkmanship on the part of both the army and the LTTE, the critics resorted to self-serving interpretations and predictions that the peace process was unravelling. The Monitoring Mission clarified that it is vital to maintain the pre-ceasefire military balance till substantial progress is made and that there should be a trade-off between the withdrawal from the HSZs by the army and decommissioning by the LTTE. The fourth round of talks emphasized the humanitarian component of the crisis and the need to start resettlement outside the HSZ areas.

The LTTE's current refusal to work with the army in the Sub-Committee on De-escalation and Normalization is not a major crisis but a minor hiccup that is not unusual during a peace process. As we see it, the humanitarian aspects should take precedence while de-escalation by both parties proceed in an even manner as substantial progress is made on other issues. The LTTE's announcement that its weapons are its bargaining chips at the negotiating table is also its admission of their limitations on the battleground.

It is very unfortunate that wild and irresponsible comparisons are being made between the Sri Lankan situation and the 50 year old international problem of the Return of the Palestinian Refugees to Israel-Palestine. It is also disingenuous for the same people who criticise the LTTE for its harassment of Tamil civilians, to argue that the Sri Lankan Army should retain the High Security Zones in the Jaffna Peninsula regardless of the plight of the displaced Tamil people. There are people in refugee camps in Jaffna for more than ten years after being evacuated by the security forces. Our group

visited one such camp in Chunnakam, the occupants of which are fishermen and their families from the village of Myliddy. They have been in the camp for over ten years and cannot return to their village because it falls within the HSZ close to the Palaly military base.

It is not only the army, but the LTTE also has forced the evacuation of people of Jaffna. It forced the evacuation of the Jaffna Muslims in 1990, and, five years later, forced nearly 700,000 people to leave their homes on the eve of the military's take over of Jaffna. Not more than half of those people and a few Muslims would seem to have now returned, and the plight of the displaced in the Peninsula and the Vanni area continues. During our visit to Jaffna, there were petitions and protest marches about the resettlement of the displaced people of Chavakachcheri, the last group of people to be displaced during the 2000 battle of Jaffna. But the organizers of these protests clearly indicated that they were not demanding the total evacuation of the army from the HSZ areas, but an arrangement to reduce the area of army occupation and allow the resettlement of civilians. Curiously, the connection between the HSZ and rehabilitation was not clearly dealt with in the MoU. As a foreign diplomat in Colombo surmised to two members of our group, the LTTE appears to have paid less attention to civilian issues in the MoU, and it was the TULF Parliamentarians who kept raising the issue of the Army leaving the HSZ areas to enable the return of the displaced people to their homes. After one year of peace, the LTTE is also being forced to respond to civilian pressures in raising the issue of the displaced people.

The Sri Lanka Monitoring Mission has described 2002 as the year when the guns fell silent. By any measure, 2002 has been a remarkable year for Sri Lanka. It marked a full year of ceasefire for the first time in nearly 20 years. It is still too early for political celebrations and an economic turnaround, but the people are enjoying their new freedom from the restrictions and uncertainties of war and the fear of being raped or suicide-bombed. The people's choice is peace. The military experiences of the SL Army and the LTTE, as well as changing domestic and international circumstances have brought about a successful ceasefire. To the extent these objective conditions are likely to continue, it will be difficult for either party to return to the fighting mode. There will of course be violations and infractions but the real danger could be a state of general lawlessness and anarchy if the unwinding of the war machines on both sides is not incrementally and methodically undertaken. The other danger is in reaching agreements rather rapidly on paper at peace talks held at far flung locations around the world, without corresponding changes in the ground situation at home. The biggest challenge, however, is to open the peace process at different levels and locations to include all of the principal players and involve the people themselves.

GOVERNMENT + L.T.T.E – MUSLIMS = *INTIFADAH*: THE CRUEL EQUATION IN SRI LANKAN PEACE PROCESS

Ameer Ali

The fact that after nearly two decades of fighting, death and destruction the warring parties in Sri Lanka have decided to sit around the negotiating table to talk peace is indeed a welcoming relief to the suffering masses of Sri Lanka. The Norway peace brokers, the Sri Lankan government, and the Liberation Tigers of Tamil Eelam should be congratulated individually and collectively for making this change possible. The world of 1983 when the LTTE commenced its armed struggle and the world of 2003 that is witnessing the peace-making process operating in Thailand are vastly different. With a single super power arrogantly dictating its wishes to the whole world international opinion makers are threatening to baptise the freedom fighters of previous decades as terrorists of the 21st century. This is bound to undermine any positive image and legitimacy of all organised political resistance. A peaceful resolution to the ethnic crisis in Sri Lanka has therefore become more imperative now than ever before.

Ethnic Complexity

While welcoming the peace initiative the world must be made aware of the reality of the situation in the main theatre of action in Sri Lanka i.e., of the ethnic complexity and conflicting communal interests in the north and east of the country. The fact that there are three major variables in the ethnic equation is often concealed or conveniently forgotten when explaining the situation to the outside world. While the Tamils are the predominant majority in the northern sector of the island the Sinhalese and Muslims together form the majority in the east. In fact, there is a rough balance of population power amongst the Tamil, Sinhalese and Muslim communities in the Eastern Province. Therefore to show the world that the north and east of Sri Lanka is the historical land of Tamil Eelam and belongs to the Tamils only is a distortion of reality. Even during the pre-colonial era when the island was politically divided into three kingdoms the Trincomalee, Batticaloa and Amparai districts of today's Eastern Province were never a part of the Jaffna Kingdom under Tamil rulers. Thus, when speaking about the Tamil problem in Sri Lanka this difference between the north and east must be made crystal clear. Moreover, within the Tamil community also the social structure of the Eastern Province Tamils is distinctly different from their northern brethren. The cast structure of the Eastern Tamils, and their customary laws and traditions are not the same as in the north. The customary laws of *thesavalamai* in the north is radically different from the *mukkuvar* laws of the east.

More than the differences within the Tamil community it is the presence of a strong Muslim community in the Eastern Province that makes the ethnic equation more complex. For a long time there has been a deliberate attempt by politicians and political scientists of Sri Lanka to downplay the significance of the Muslim community in the ethnic problem. The entire issue was treated as one between the Tamils and Sinhalese only and the Muslim variable was totally ignored receiving public mention only when it suited the political agenda of rivalling political parties to gain Muslim votes during election times. The Tamil leaders themselves through dubious arguments in the past had tried without success to prove that the Muslims are also Tamils but belong to a different religion like the Christian Tamil community. From Ramanathan in the 19th century to Prabakaran in the 20th that situation has not changed. This is the outcome of a gross misunderstanding and confusion about the identity of Sri Lankan Muslims. I have dealt with this problem quite extensively in other places and there is no need to repeat here. What should be emphasised for the present purpose is that ethnicity is secondary to a Muslim whose identity is primarily religious. The moment one becomes a Muslim all other identities fade away. Even the *harijans* in India when they revert to Islam lose their previous social identity and become an equal component of the Muslim *ummah*. This unique characteristic of Islam is rarely understood by non-Muslims. When Ramanathan raised the issue of ethnic identity of the Muslims his true intention was political. If he could convince the British rulers of the time that Muslims in Sri Lanka were ethnically Tamils he could then argue that separate representation for Muslims in the then Legislative Council, which the colonial government was then contemplating, would be superfluous. This was why Muslim community leaders like I. L. M. Abdu Azeez at that time realised the political urgency to discover a separate ethnic identity for the Muslims and quickly picked the name Moor which was nothing but an accidental epithet bestowed by the Portuguese who themselves were confused in the 16th century about the collective identity of the Muslims they confronted. Today although the name Moor has been officially accepted as an ethnic appellation no Muslim in Sri Lanka identifies him/herself as a Moor, thanks to the religious awakening amongst the Muslims in recent decades. This is why the Muslims of the Eastern and Northern provinces are not prepared to accept the LTTE notion of Islamiyath Thamizhar.

The Eastern Province Muslims account for nearly one-third of the region's population strength. Another one-third comes from the Sinhalese who are concentrated in the electorates of Trincomalee, Kantalai, and Amparai. Only the last third are Tamils. The current